

Hearing Preparation Guide

Prepare the hearing file, updated arrears position, and speaking points for the possession hearing - with Ground 8 kept under review at both notice and hearing stage

PROPERTY	16 Willow Mews York YO24 3HX
TENANT	Ivy Carleton
COURT	York County Court and Family Court
HEARING DATE	<i>To be notified by court</i>

Notice timeline

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

Form 3A notice served on 28 May 2026, expiring on 29 June 2026, with proceedings not intended before 29 June 2026.

NOTICE SERVICE DATE	28 May 2026
NOTICE EXPIRY DATE	29 June 2026
EARLIEST PROCEEDINGS DATE	29 June 2026

Court-pack validation summary

DEEMED SERVICE DATE USED	1 June 2026
NOTICE EXPIRY DATE	29 June 2026
EARLIEST PROCEEDINGS DATE	29 June 2026
TOTAL ARREARS	£3600.00
GROUND 8 THRESHOLD	£3600.00
GROUND 8 STATUS	AT

What the court will consider

- ☐ Is the notice valid?
- ☐ Was it served correctly?
- ☐ Do the grounds apply?
- ☐ Are the arrears proven?
- ☐ Does Ground 8 still meet the threshold at the hearing as well as at service stage?

Before the hearing

- ☐ Review the notice, service record, witness statement, and bundle index together so the pack remains internally consistent.
- ☐ Update the arrears schedule and check that the figure to be stated to the judge matches the latest rent account.
- ☐ Check whether the tenant has filed a defence, witness statement, or counterclaim and identify the documents that answer it.

Suggested court bundle order

- ☐ N5 claim form
- ☐ N119 particulars of claim
- ☐ Witness statement
- ☐ Tenancy agreement
- ☐ Form 3A notice
- ☐ N215 or other service evidence
- ☐ Arrears schedule
- ☐ Rent ledger or bank statements
- ☐ Compliance evidence
- ☐ Correspondence, photos, and other exhibits

Tenant defence anticipation

- ☐ Disrepair or set-off.
Check inspection history, repair reports, and whether any sum is said to have been withheld or set off.
- ☐ Payments not credited.
Check the ledger, bank statements, and the updated arrears schedule before the hearing.
- ☐ Wrong service or wrong date challenge.
Check Form 3A, the service record, and every date used in the claim papers.
- ☐ Deposit or compliance challenge.
Check the tenancy file for deposit, safety, and service records that may be relevant to credibility or defence points.
- ☐ Hardship or adjournment request.
Stay factual and keep the focus on notice validity, service, grounds, and the current arrears position.
- ☐ Counterclaim.
Check what has actually been pleaded and what evidence is needed to answer it.

Bring to court

- ☐ Indexed court bundle
- ☐ Original tenancy agreement
- ☐ Form 3A notice
- ☐ Proof of service evidence
- ☐ Updated rent statement and arrears schedule
- ☐ Payment ledger, bank statements, or rent receipts
- ☐ Copies of payment demands or arrears correspondence

Common failure points

- ☐ Inconsistent dates between the notice, N215, witness statement, and claim papers.
- ☐ Missing or unclear service evidence.
- ☐ Arrears figures that do not match the latest schedule or payment history.
- ☐ Issuing before the notice period has expired or before the earliest proceedings date.
- ☐ Using the wrong court or the wrong defendant details.
- ☐ Signing a statement of truth that does not match the current file.

At the hearing

- ☐ Keep submissions short, factual, and tied to the pleaded ground or grounds.
- ☐ Explain the current arrears position, the rent cadence, and the documents supporting the running balance.
- ☐ Be ready to identify what you accept, what you dispute, and which exhibit addresses the point.

Ground 8 should only be advanced as a mandatory ground if the arrears still satisfy the threshold of £3,600.00 at the hearing.

Procedural warnings

- ☐ Do not issue before expiry or before the earliest proceedings date.
- ☐ Verify the court, the claimant names, and the defendant name and address before issue.
- ☐ Update the arrears figure before the hearing if payments are made.
- ☐ Ensure the N5, N119, notice, and witness statement dates match.
- ☐ Do not sign the statement of truth unless the current file is accurate.

If the case changes

- ☐ If the tenant raises disrepair, set-off, or a counterclaim, keep the response anchored to the pleadings and documents.
- ☐ If a payment is made shortly before the hearing, update the figures immediately and reconsider the effect on any mandatory arrears ground.

Date: 28 May 2026